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ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

REQUEST FOR JUDICIAL NOTICE

(Evid. Code § 451–453)

Dept.: 610

Date: June 24, 2026

**PLAINTIFF’S REQUEST FOR JUDICIAL NOTICE OF JKC3H8 V. COLTON
(2013) 221 CAL.APP.4TH 468 AND OF NEWPORT HARBOR VENTURES,
LLC V. MORRIS CERULLO WORLD EVANGELISM (2017) 4 CAL.5TH
637; PLEADING-MANAGEMENT RETENTION AND THE TIMING
LIMIT ON SUCCESSIVE ANTI-SLAPP ATTACKS; CROSS-NOTICED
ACROSS THE JUNE 24, 2026 CONSOLIDATED COHORT**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 **Filed**
by: Plaintiff Dylan Franciscus Rosario, Self-represented

I. CROSS-NOTICE PARAGRAPH; APPLICATION TO ALL SEVEN COHORT MOTIONS

Procedural authority for the June 24, 2026 hearing line: This Court, by minute order entered May 13, 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk), continued the consolidated motion calendar to June 24, 2026, 9:00 a.m., Department 302, and directed: “All parties immediately to provide courtesy copies of their filings per SF Local Rule 2.7B with a cover letter reflecting the new hearing date.” Thereafter, on the parties’ stipulation and the Court’s order, all remaining pending Department 302 matters were consolidated for hearing on June 24, 2026, 9:00 a.m., Dept. 302. This Request is tendered in conformity with that order.

This Request is associated with, and cross-noticed across, each of the seven motions on the consolidated June 24, 2026, 9:00 a.m., Dept. 302 hearing line, and Plaintiff respectfully requests that the matters herein be judicially noticed in connection with the Court’s adjudication of each of the following:

(A) Defendant CSAA Insurance Exchange’s Special Motion to Strike under Code of Civil Procedure section 425.16, filed April 9, 2026 (seqs 015 to 018). JKC3H8 v. Colton is the controlling Court of Appeal authority recognizing that the trial court retains its ordinary pleading-management authority under sections 472, 473, subdivision (a)(1), 576, and 425.16, subdivision (f), even after an anti-SLAPP motion is filed; an amendment that removes protected-activity allegations from the pleading is effective and renders an anti-SLAPP motion directed at the prior pleading moot. The express limit on that holding, set out at pages 477 to 478, prohibits a plaintiff from amending “to subvert or avoid a ruling on an anti-SLAPP motion.” JKC3H8 thereby frames the threshold-sequencing analysis on motion (A).

(B) Defendant’s section 425.16, subdivision (b)(2), probability-of-prevailing analysis (briefed within the same April 9, 2026 anti-SLAPP papers). JKC3H8 supplies the rule that where amendments narrow or moot the protected-activity allegations, the second-prong probability-of-prevailing inquiry does not reach those withdrawn allegations; and Newport Harbor Ventures supplies the corollary timing rule that the prohibition on amendment as a means of evading anti-SLAPP review begins “no earlier than the filing of the anti-SLAPP motion.”

- (C) Plaintiff’s Motion for Specified Discovery under Code of Civil Procedure section 425.16, subdivision (g), filed May 21, 2026. The judicially noticed pleading-management framework supports the good-cause showing for specified discovery: amendments offered to narrow the strike target are a recognized procedural feature of California law, and discovery directed to the operative pleading is consistent with the threshold-channel sequencing the Court of Appeal endorsed.
- (D) Defendant’s Demurrer to Plaintiff’s First Amended Complaint, filed April 13, 2026 (seqs 019 to 023), and Defendant’s Motion to Strike Pleading under Code of Civil Procedure section 436, filed April 22, 2026 (folded into the consolidated cohort). The pleading-management authority preserved by JKC3H8 likewise governs the scope of permissible challenges under sections 430.10 and 436; the trial court is not stripped of its discretion to manage the pleadings under sections 473, subdivision (a)(1), and 576 by the pendency of an anti-SLAPP motion.
- (E) Plaintiff’s Motion for Sanctions under Code of Civil Procedure section 128.7 (anti-SLAPP reply misconduct), filed May 21, 2026. JKC3H8 is published, controlling Court of Appeal authority on the precise intersection of leave-to-amend and section 425.16, and is therefore directly adverse, within the meaning of California Rule of Professional Conduct 3.3(a)(2), to defense representations that “no such authority exists” on the leave-to-amend / anti-SLAPP question. Locking the verbatim opinion text into the record places the controlling authority before the Court as a noticed authority, not merely as a citation.
- (F) Plaintiff’s Notice of Reply-Declaration Misconduct as Cumulative RPC 3.3(a)(1) and 3.4(b) Record (cohort overlay tied to the May 6, 2026 reply declaration of Tyler J. O’Connell). The judicially noticed JKC3H8 holding bears on the cumulative misrepresentation record because the defense reply papers advance positions inconsistent with the controlling pleading-management authority.
- (G) Plaintiff’s Renewed Motion for Leave to File Third Amended Complaint under Code of Civil Procedure section 1008, subdivision (b), filed May 21, 2026. The judicially noticed pleading-management retention rule of JKC3H8 supplies the “new and different facts, circumstances, or law” anchor for the renewed motion, defeating any futility objection to leave: if the

1 amendment narrows or moots the protected-activity allegations within the timing window
2 recognized by Newport Harbor Ventures, the trial court retains its ordinary leave-to-amend
3 discretion.

4
5 **II. REQUEST UNDER EVIDENCE CODE SECTIONS 451 AND 452,**
6 **SUBDIVISION (A): VERBATIM OPINION TEXT OF JKC3H8 V. COLTON**
7 **(2013) 221 CAL.APP.4TH 468**

8 Pursuant to Evidence Code sections 451 and 452, subdivision (a), Plaintiff respectfully requests
9 that this Court take judicial notice of the published California Court of Appeal opinion JKC3H8
10 et al. v. James Colton et al. (2013) 221 Cal.App.4th 468, 164 Cal.Rptr.3d 450 (Third Appellate
11 District; Hoch, J.; review denied), as a published California decisional authority. Judicial notice
12 is requested as to the existence, holdings, and reasoning of that opinion as published California
13 law. The verbatim issue-and-holding passage at pages 471 to 472, the procedural-posture passage
14 at pages 472 to 473 and 479, and the express limit passage at pages 477 to 478, are reproduced in
15 **Exhibit A** to this Request for the Court's bench convenience.

16
17 **III. REQUEST UNDER EVIDENCE CODE SECTIONS 451 AND 452,**
18 **SUBDIVISION (A): NEWPORT HARBOR VENTURES, LLC V. MOR-**
19 **RIS CERULLO WORLD EVANGELISM (2017) 4 CAL.5TH 637**

20 Pursuant to Evidence Code sections 451 and 452, subdivision (a), Plaintiff respectfully requests
21 that this Court take judicial notice of the published California Supreme Court opinion Newport
22 Harbor Ventures, LLC v. Morris Cerullo World Evangelism (2017) 4 Cal.5th 637, as a published
23 California decisional authority. Judicial notice is requested as to the existence, holding, and rea-
24 soning of that opinion as published California law, with particular reference to the timing rule that
25 the prohibition on amending the complaint to defeat or avoid a then-pending anti-SLAPP motion
26 arises "no earlier than the filing of the anti-SLAPP motion." Newport Harbor Ventures supplies
27 the timing corollary to the JKC3H8 pleading-management retention rule and frames the analysis

of successive anti-SLAPP attacks against narrowed pleadings.

IV. RELEVANCE; CROSS-MOTION LINKING MATRIX

Each of the two judicially noticed authorities is relevant to each of the seven cohort motions identified in Section I above. The relevance is summarized in the following cross-motion linking matrix, which mirrors the doctrinal hooks identified by Plaintiff for each cohort motion:

Motion	Letter	JKC3H8 / Newport Harbor hook
Anti-SLAPP under section 425.16	A	Pleading-management retention; “subvert or avoid” limit at pp. 477 to 478; Newport Harbor timing rule
Section 425.16, subd. (b)(2), probability of prevailing	B	Threshold-gateway preservation; second-prong inquiry does not reach narrowed or mooted allegations
Section 425.16, subd. (g), specified discovery	C	Amendments narrowing the strike target; good-cause showing consistent with threshold sequencing
Demurrer / section 436 motion to strike pleading	D	Pleading-management retention parallel under sections 430.10 and 436

Motion	Letter	JKC3H8 / Newport Harbor hook
Section 128.7 sanctions	E	Rule 3.3(a)(2) directly-adverse-authority predicate; opinion in record as a noticed authority
Reply-declaration misconduct notices	F	Cumulative misrepresentation record where reply papers advance positions inconsistent with controlling authority
Section 1008, subd. (b), renewed MFL-TAC	G	“New and different facts, circumstances, or law” anchor; futility defeated where amendment narrows or moots within the Newport Harbor timing window

Plaintiff does not, by this Request, ask the Court to take judicial notice of the truth of any contested factual contention. Judicial notice is requested as to the existence, holdings, and reasoning of the two published California opinions and as to the application of those authorities to the threshold-gateway and pleading-management framework on the seven motions.

V. PROPOSED ORDER LANGUAGE

Plaintiff respectfully proposes that the Court enter the following:

“The Court takes judicial notice under Evidence Code sections 451 and 452, subdivision (a), of the existence, holdings, and reasoning of the following published California opinions: JKC3H8 et al. v. James Colton et al. (2013) 221 Cal.App.4th 468, 164 Cal.Rptr.3d 450, including the verbatim opinion passages at pages 471 to 472 (issue and holding), pages 472 to 473 and 479 (procedural

posture), and pages 477 to 478 (express limit), as set out in Exhibit A to Plaintiff’s Request for Judicial Notice; and Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism (2017) 4 Cal.5th 637, including the timing rule that the prohibition on amendment to defeat a then-pending anti-SLAPP motion arises no earlier than the filing of the anti-SLAPP motion. Judicial notice is taken as to the existence, holdings, and reasoning of the published opinions only, and not as to the truth of any contested factual contention. This Request is associated with each of the seven motions on the June 24, 2026, 9:00 a.m., Dept. 302 consolidated hearing line.”

VI. RELATION TO COMPANION JKC3H8 INSTRUMENTS (TAB-33, TAB-33A, TAB-33B)

This Request converts JKC3H8 v. Colton from an argument-only and notice-only posture into a judicially noticed posture by locking the verbatim opinion text into the record. The companion instruments are complementary and not displaced:

- TAB-33 (Plaintiff’s Notice of Supplemental Authority, JKC3H8 v. Colton): identifies the opinion to the Court as supplemental authority.
- TAB-33A (Plaintiff’s Notice of Directly Adverse Controlling Authority under California Rule of Professional Conduct 3.3(a)(2)): discloses the opinion’s directly adverse character to defense representations on the leave-to-amend / anti-SLAPP question.
- TAB-33B (Plaintiff’s Request for Judicial Notice of the Docketed Defense MFL-SAC Opposition Introduction Page): notices the docketed defense representation that “no such authority exists.”
- TAB-33C (this Request): notices the verbatim opinion text and holding passages of JKC3H8, plus Newport Harbor Ventures, that contradict the docketed defense representation noticed at TAB-33B.

The doctrinal separation: TAB-33B notices the defense’s docketed misrepresentation; TAB-33C notices the published opinion that contradicts it. Read together, TAB-33 through TAB-33C form a single doctrinal block: notice, disclosure, RFJN of the misrepresentation, and RFJN of the controlling opinion.

1 A one-line cross-reference to this Request appears on the cover of TAB-46A (Plaintiff's Request
2 for Judicial Notice of Code of Civil Procedure section 425.17, subdivisions (a) through (d)), so that
3 the bench may locate the JKC3H8 / Newport Harbor pleading-management authorities alongside
4 the section 425.17, subdivision (c), threshold-gateway authorities.

6 **VII. SERVICE**

7 This Request and Exhibit A are served on Defendant's counsel of record (Mark G. Tapp, Tyler J.
8 O'Connell, Mason Schubert, and Sarah J. Blithe, Porter Scott, P.C.) by electronic mail per Code
9 of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21, with a Proof of Service
10 (POS-050) filed contemporaneously.

12 **EXHIBIT A: VERBATIM OPINION PASSAGES OF JKC3H8 V. COLTON** 13 **(2013) 221 CAL.APP.4TH 468**

14 The following passages are reproduced verbatim from the published opinion of the California
15 Court of Appeal, Third Appellate District (Hoch, J.), as filed November 13, 2013 (review denied),
16 221 Cal.App.4th 468, 164 Cal.Rptr.3d 450.

17 **A. Verbatim issue-and-holding passage (opinion, opening passage, pp. 471 to 472)**

18 The Court of Appeal stated the issue and the holding in a single passage:

19 "Where a plaintiff who has filed a complaint containing causes of action that are based, in part,
20 on protected conduct and therefore potentially subject to a special motion to strike under Code
21 of Civil Procedure section 425.16 (the anti-SLAPP statute), subsequently files an amended com-
22 plaint removing the allegations of protected conduct as a basis for liability, does the filing of the
23 amended complaint render moot a later-filed anti-SLAPP motion based on the original complaint?
24 We conclude that it does."

25 (JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 471 to 472 (opinion of Hoch, J.))

26 **B. Verbatim limit passage, "subvert or avoid" rule (pp. 477 to 478)**

27 The Court of Appeal also drew the express limit on its holding:

1 “[A] plaintiff or cross-complainant may not seek to subvert or avoid a ruling on an anti-SLAPP
2 motion by amending the challenged complaint or cross-complaint in response to the motion.”
3 (JKC3H8 v. Colton, supra, 221 Cal.App.4th at pp. 477 to 478, 164 Cal.Rptr.3d 450.)

4 This passage draws the dividing line between, on one hand, amendments that narrow or moot issues
5 raised by an anti-SLAPP motion, which the Court of Appeal expressly recognized as a legitimate
6 procedural feature of California law, and, on the other hand, amendments designed to subvert or
7 avoid an anti-SLAPP ruling, which are not permitted.

8 **C. Procedural posture passage (pp. 472 to 473, and 479)**

9 As the published opinion sets out, and as subsequent California opinions have summarized, the
10 procedural posture of JKC3H8 was as follows: the plaintiff filed an amended complaint less than
11 two hours prior to the defendant filing an anti-SLAPP motion directed at the original complaint
12 (Id. at pp. 472 to 473.); the amendments eliminated from the complaint all allegations of activity
13 purportedly protected by the anti-SLAPP statute (Id. at p. 479.); and the appellate court concluded
14 there were no causes of action arising from protected activity to strike at the time the defendant’s
15 motion was filed, meaning the motion was moot (Ibid.).

16 The “point at which a plaintiff is prohibited from amending the complaint in response to an anti-
17 SLAPP motion is no earlier than the filing of the anti-SLAPP motion.” (Cf. Newport Harbor
18 Ventures, LLC v. Morris Cerullo World Evangelism (2017) 4 Cal.5th 637, and JKC3H8 v. Colton,
19 supra.)

20 _____
21 Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026

A handwritten signature in blue ink, appearing to read 'Franciscus' followed by a stylized 'D' and 'R'.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this request for judicial notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	Evid. Code 451–453	Proper categories; neutral descriptions	Items list sources only	Items for notice
2	CRC 3.1306(c)	Request format and item list	Numbered items with citations	RFJN body
3	CRC 3.1113	Organized authority references	TOA or inline cites as used	Body